Cleveland Division of Police
Detail

Print Date/Time: 10/12/2018 11:32
Login ID: mastroip
Case Number: 2017-00384086

ORI Number: Cleveland Division of Police OHCLP0000

Case Details:

Case Number: 2017-00384086
Location: 2120 E 4TH ST
CLEVELAND,OH 44115

Incident Type: Inducing Panic
Occured From: 11/29/2017 19:30
Occured Thru: 11/29/2017 19:45
Reported Date: 11/29/2017 19:46 Wednesday

Reporting Officer ID: H1018-Hathaway **Status:** Open/Active **Status Date:** 12/08/2017

Assigned Bureau: *Not Applicable

Case Assignments:

Assigned Officer	Assignment Date/Time	Assignment Type	Assigned By Officer	Due Date/Time

Associated Cases	Status	Assisting ORIs	Role

Modus Operandi	Solvability Factors	Weight
		Total:

Offenses

No.	Group/ORI	Crime Code	Statute	Description	Counts
1	OHCLP0000	90C	605.06	Inducing Panic	1
2	OHCLP0000	90G	617.07	Open Container Prohibited; Exception	1

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Cleveland Division of Police
ORI Number: OHCLP0000

Offense # 1

Group/ORI: OHCLP0000 **Crime Code:** 90C **Statute:** 605.06 **Counts:** 1 **Attempt/ Commit Code:** Committed
Description: Inducing Panic **Offense Date:** 11/29/2017
NCIC Code: 5302 **Scene Code:** Bar **Bias/Motivation:** Anti - Black or African American

Offense Status:
Status Date:
Occupancy Code:
Arson Code:
Domestic Code: No
Child Abuse:
Gang Related: No
Aiding/Abetting:
Sub-Code:
# of Adults:
# of Juveniles:
IBR Seq. No: 1
Property Damage Amt.:
Abandoned Structure:
Household Status:
Domestic Circumstance:
Carjacking:
Accosting Situation:
Hate Bias Indicator:
Premise Code:
Gambling Motivated:
Order of Protection:
Prior Inv - Victim:
Prior Inv - Offender:
Anit-reproductive rights crime:
Cargo Theft:
Special Circumstances:
Precipitating Event:

Offender Suspected of Using

Alcohol: Yes
Drugs: Not Applicable
Computer: Yes
Aggravated Assault/ Homicide Circumstances #1:
Aggravated Assault/ Homicide Remarks #1:
Justifiable Homicide Circumstances :

Victim Suspected of Using

Alcohol:
Drugs:
Computer:
Aggravated Assault/ Homicide Circumstances #2:
Aggravated Assault/ Homicide Remarks #2:
Justifiable Homicide Code :
Larceny Type:
Method of Entry Type:
Method of Entry :
Point of Entry:
# of Premises Entered :
Method of Exit Type:
Method of Exit :
Point of Exit:
How Left Scene:
Direction of Travel:
Counterfeit Type:
Counterfeit Status:
Counterfeit Amount:

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ORI Number: Cleveland Division of Police OHCLP0000

Offense # 2

Group/ORI: OHCLP0000 **Crime Code:** 90G **Statute:** 617.07 **Counts:** 1 **Attempt/ Commit Code:** Committed
Description: Open Container Prohibited; Exception **Offense Date:** 11/29/2017
NCIC Code: 4199 **Scene Code:** Bar **Bias/Motivation:** No Bias / Not Applicable

Offense Status:
Status Date:
Occupancy Code:
Arson Code:
Domestic Code: No
Child Abuse:
Gang Related: No
Aiding/Abetting:
Sub-Code:
# of Adults:
# of Juveniles:
IBR Seq. No: 2
Property Damage Amt.:
Abandoned Structure:
Household Status:
Domestic Circumstance:
Carjacking:
Accosting Situation:
Hate Bias Indicator:
Premise Code:
Gambling Motivated:
Order of Protection:
Prior Inv - Victim:
Prior Inv - Offender:
Anit-reproductive rights crime:
Cargo Theft:
Special Circumstances:
Precipitating Event:

Offender Suspected of Using

Alcohol: Yes
Drugs: No
Computer: Not Applicable
Aggravated Assault/ Homicide Circumstances #1:
Aggravated Assault/ Homicide Remarks #1:
Justifiable Homicide Circumstances :

Victim Suspected of Using

Alcohol:
Drugs:
Computer:
Aggravated Assault/ Homicide Circumstances #2:
Aggravated Assault/ Homicide Remarks #2:
Justifiable Homicide Code :
Larceny Type:
Method of Entry Type:
Method of Entry :
Point of Entry:
# of Premises Entered :
Method of Exit Type:
Method of Exit :
Point of Exit:
How Left Scene:
Direction of Travel:
Counterfeit Type:
Counterfeit Status:
Counterfeit Amount:

Subjects

Type	No.	Name	Address	Phone	Race	Sex	DOB/Age
Complainant	1	Harry Buffalo	2120 E 4TH ST CLEVELAND,OH 44115	(216)621-8887			
Reporting Person	1	HOWES, DAVID LARRY	460 RACE ST Berea,OH 44017	(440)339-2397	White	Male	12/04/1984 32
Suspect	1	Ward, Dartanyous	12513 SOIKA AVE CLEVELAND,OH 44120	(216)971-0911	Black	Male	05/04/1961 56
Victim	2	City of Cleveland	<UNKNOWN> ,	(216)623-5200			
Witness	2	Swenson, Cathy A	128 SEWARD Smyrna,TN 37167	(615)428-3812	White	Female	03/27/1959 58
Witness	1	Williams, Donnis D	5104 WOODHILL LANE ST Louisville,KY 40219	(502)619-3737	Black	Female	05/30/1966 51

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ORI Number: Cleveland Division of Police OHCLP0000

Subject # **1-Complainant**

Primary: No
Name: Harry Buffalo
Address: 2120 E 4TH ST
CLEVELAND OH 44115
Primary Phone: (216)621-8887

Race:
Height:
Eyes:
SSN:

Sex:
Weight:
Hair:
DVL #:

Build:
Age:
State:

Resident Type:
Disposition:

Resident Status:
Date:

Statement Type:
Custody Status:

Related Offenses

Group/ORI	Crime Code	Statute	Description
OHCLP0000	90G	617.07	Open Container Prohibited; Exception

Related Weapons

Victim/Offender Relationship

Transported By:
Domestic Violence:
Condition:

Extent of Injury:
Domestic Violence Referrals:
Medical Treatment:

Hospital:
Federal Agencies Involved:

Missing Person Information

Subject # **1-Reporting Person**

Primary: No
Name: HOWES, DAVID LARRY
Address: 460 RACE ST
Berea OH 44017
Primary Phone: (440)339-2397

Race: White
Height: 6ft 1 in
Eyes:
SSN:

Sex: Male
Weight: 185.0 lbs.
Hair:
DVL #: 1 - MTR VE...

DOB: 12/04/1984
Build:
Age: 32
State: OH

Resident Type:
Disposition:

Resident Status: Resident
Date:

Statement Type: Field Video Statement
Custody Status:

Related Offenses

Related Weapons

Victim/Offender Relationship

Transported By:
Domestic Violence:
Condition:

Extent of Injury:
Domestic Violence Referrals:
Medical Treatment:

Hospital:
Federal Agencies Involved:

Missing Person Information

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Case Number: 2017-00384086

ORI Number: Cleveland Division of Police OHCLP0000

Subject # **1-Suspect**

Primary:	No	**Suspect Type:**	Arrested				
Name:	Ward, Dartanyous	**Race:**	Black	**Sex:**	Male	**DOB:**	05/04/1961
Address:	12513 SOIKA AVE	**Height:**	5ft 4 in	**Weight:**	148.0 lbs.	**Build:**	Medium
	CLEVELAND OH 44120	**Eyes:**	Brown	**Hair:**	Black	**Age:**	56
Primary Phone:	(216)971-0911	**SSN:**		**DVL #:**	1 - MTR VEH/...	**State:**	OH
Resident Type:		**Resident Status:**	Unknown	**Statement Type:**	None		
Disposition:		**Date:**		**Custody Status:**			

Related Offenses

Group/ORI	Crime Code	Statute	Description
OHCLP0000	90G	617.07	Open Container Prohibited; Exception
OHCLP0000	90C	605.06	Inducing Panic

Related Weapons

Victim/Offender Relationship

No.	Type	Name	Relationship
1	Suspect	Ward,Dartanyous	Unknown
1	Suspect	Ward,Dartanyous	Unknown
1	Suspect	Ward,Dartanyous	Unknown

Transported By:	**Extent of Injury:**	**Hospital:**
Domestic Violence:	**Domestic Violence Referrals:**	**Federal Agencies Involved:**
Condition:	**Medical Treatment:**	

Missing Person Information

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Case Number: 2017-00384086

ORI Number: Cleveland Division of Police OHCLP0000

Subject # **2-Victim**

Primary: No
Name: City of Cleveland
Address: <UNKNOWN>
Primary Phone: (216)623-5200

Victim Type: Society/Public
Race:
Height:
Eyes:
SSN:
Sex:
Weight:
Hair:
DVL #:
Build:
Age:
State:

Resident Type:
Resident Status:
Statement Type:
Disposition:
Date:
Custody Status:

Related Offenses

Group/ORI	Crime Code	Statute	Description
OHCLP0000	90G	617.07	Open Container Prohibited; Exception
OHCLP0000	90C	605.06	Inducing Panic

Related Weapons

Victim/Offender Relationship

Transported By:
Extent of Injury:
Hospital:
Domestic Violence:
Domestic Violence Referrals:
Federal Agencies Involved:
Condition:
Medical Treatment:

Missing Person Information

Subject # **2-Witness**

Primary: No
Name: Swenson, Cathy A
Address: 128 SEWARD
Smyrna TN 37167
Primary Phone: (615)428-3812

Race: White
Height: 5ft 5 in
Eyes: Brown
SSN:
Sex: Female
Weight: 100.0 lbs.
Hair: Black
DVL #: 1 - MTR VE...
DOB: 03/27/1959
Build:
Age: 58
State: TN

Resident Type:
Resident Status: Tourist
Statement Type: Field Video Statement
Disposition:
Date:
Custody Status:

Related Offenses

Related Weapons

Victim/Offender Relationship

Transported By:
Extent of Injury:
Hospital:
Domestic Violence:
Domestic Violence Referrals:
Federal Agencies Involved:
Condition:
Medical Treatment:

Missing Person Information

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ORI Number: Cleveland Division of Police OHCLP0000

Subject # **1-Witness**

Primary: No
Name: Williams, Donnis D
Address: 5104 WOODHILL LANE ST
Louisville KY 40219
Primary Phone: (502)619-3737
Resident Type:

Race: Black
Height: 5ft 11 in
Eyes: Brown
SSN:
Resident Status: Tourist

Sex: Female
Weight: 200.0 lbs.
Hair: Black
DVL #: 1 - MTR VEH/LIC...

DOB: 05/30/1966
Build:
Age: 51
State: KY
Statement Type: Field Video Statement

Disposition:
Date:
Custody Status:

Related Offenses

Related Weapons

Victim/Offender Relationship

Transported By:
Domestic Violence:
Condition:
Extent of Injury:
Domestic Violence Referrals:
Medical Treatment:
Hospital:
Federal Agencies Involved:

Missing Person Information

Arrests

Arrest No.	Name	Address	Date/Time	Type	Age
737039A	WARD, DARTANY0US	2120 E 4TH ST CLEVELAND,OH 44115	11/29/2017 19:50	Fresh Arrest (Crime In Progress)	56

Arrest # 737039 A
Name: WARD, DARTANY0US
Address: 12513 SOIKA AVE
CLEVELAND, OH 44120

Date/Time: 11/29/2017 19:50
Race: Black
Height: 5ft 5 in
Eyes: Brown
SSN:

Type: Fresh Arrest (Crime In Progress)
Sex: Male
Weight: 147.0 lbs.
Hair: Black
DVL#: 1 - MTR VE...

Status:
DOB: 05/04/1961
Build:
Marital:
State: OH

Location: 2120 E 4TH ST
CLEVELAND,OH 44115

ID Procedure:
Age at Arrest: 56
Basis For Caution:
Alcohol Influence: Yes
Statement Type: Field Video Statement

Miranda ID:
Resident Type:
Arrest Result Of:
Drug Influence: Unknown
Statement ID:

Miranda Date/Time:
Resident Status: Resident
Clears Case:
Resisted Arrest:

Arresting Officers	Bureau	School Resource Officer	Weapon Codes	Feature
J1043-Janusczak		No	Unarmed	
H1018-Hathaway		No		

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Cleveland Division of Police
ORI Number: OHCLP0000

Condition:
Medical Treatment:
Transported By:
Extent of Injury:
Hospital:

Associated Numbers

Warrant ORI:
Warrant Number:
Booking ORI: OHCLP0000
Booking Number: 2017-00013441
Court ORI:
Court Case Number:

Arrest Charges

No.	Group/ORI	Crime Code	Statute	Description
1	State	0WARR	WARRANT	Warrant

Counts: 1
Charge Date/Time:
Attempt/Commit: Committed
Domestic: No
Plea:
Larceny:
Disposition:
Disposition Date:
NCIC Code: 705O
Court Date/Time:
Bond Date/Time:
Other ORI: No
Court Disposition:
Court Disposition Date:

Arrest Charges

No.	Group/ORI	Crime Code	Statute	Description
2	OHCLP0000	90G	617.07B4	Open Container Prohibited In An Operating Vehicle

Counts: 1
Charge Date/Time:
Attempt/Commit: Committed
Domestic:
Plea:
Larceny:
Disposition: Released No Formal Charges
Disposition Date: 11/30/2017
NCIC Code: 4199
Court Date/Time:
Bond Date/Time:
Other ORI: No
Court Disposition: Released with No Formal Charges
Court Disposition Date: 12/01/2017

Arrest Charges

No.	Group/ORI	Crime Code	Statute	Description
3	OHCLP0000	90C	605.06	Inducing Panic

Counts: 1
Charge Date/Time:
Attempt/Commit: Committed
Domestic:
Plea:
Larceny:
Disposition: Released No Formal Charges
Disposition Date: 11/30/2017
NCIC Code: 5302
Court Date/Time: 12/01/2017 08:30
Bond Date/Time:
Other ORI: No
Court Disposition: Charged Misdemeanor
Court Disposition Date: 11/30/2017

Arrest Charges

No.	Group/ORI	Crime Code	Statute	Description
4	OHCLP0000	27050	600	Contempt Of Court

Counts: 1
Charge Date/Time:
Attempt/Commit: Committed
Domestic:
Plea:
Larceny:
Disposition: Charged Misdemeanor
Disposition Date: 11/30/2017
NCIC Code: 5005
Court Date/Time: 12/01/2017 08:30
Bond Date/Time:
Other ORI: No
Court Disposition: Charged Misdemeanor
Court Disposition Date: 11/30/2017

Property

Date	Code	Type	Make	Model	Description	Tag No.	Item No.
12/07/2017	Stolen	OTHER PROPERTY (54)			MISC PENDING		

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Seq # 1

Tag Number: Item Number:

Property Codes: Stolen

Property Type: OTHER PROPERTY (54)

Property Class:

Date Received: 12/07/2017

UCR Value: Initial Value: Stolen Location:

Quantity: Unit of Measure: Measurement Source:

Description: MISC PENDING

Officer Remarks:

Make: Model: Style: Style Desc:
Year: OAN: Serial #: Color:
Condition: Reg. Type: Reg. ORI: Reg. Number:
Reg. State: Reg. Year: Reg. Date: Reg. Expiration:

Recovery Information

Location: Date: Code: Value:
RFOJ?: ORI: Recovered Address:

Associated Subjects

Type	Name	Address	Phone	Notified How	Date
Owner	City of Cleveland	<UNKNOWN>	(216)623-5200		

Insurance Company: Policy Number: Lein Holder:

Vehicles

No.	Role	Vehicle Type	Year	Make	Model	Color	License Plate	State

Routing:

- ☐ Detective Bureau
- ☐ Sex Crimes
- ☐ Homicide
- ☐ Prosecutor's Office

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OfficerID: hathawab, Narrative

Sir,
On above time date & location, while assigned to Z/C 9625 and in company with P.O. Hathaway#776. We received a code 2 radio broadcast to respond to 2120 E.4th street (Harry Buffalo) for a male fighting with staff. Once on scene we had the occasion to arrest (Dartanyous Ward) below are facts:

Upon our arrival we observed a male in Harry Buffalo shirt later identified as the manager Rpt#1 (David Howes) kneeling on the back of Off#1 (Dartanyous Ward) outside on the side walk. As myself and my partner approached both parties (Dartanyous) was hollering "I'mGoing To Fucking Spit On You" talking to (David). Myself and P.O. Hathaway#776 then placed (Dartanyous) in handcuffs w/o incident, searched himwhere we located a empty open plastic bottle of (Montebello Long Island Tea 20%byvolume) in his jacket pocket, we helped himup, and placed himin the rear of our Z/C.

While on scene (David) states that (Dartanyous) walked into the restaurant heading towards the kitchen area where he was stopped and told you cant go back there, thinking he might be looking for the bathroom(David) points out where the men's roomis at. (David) states that (Dartanyous) then went up to a male patron sitting at the bar asking for money. (David) states that he approached (Dartanyous) and told himhe cant ask people for money in here and he had to leave. (Dartanyous) statred hollering "I aint asking for shit" "I aint asking for shit". (David) states he said Dude just get out of here, and started to gently nudge himcloser to the front doors. (David) States that (Dartanyous) says come closer I'll Fucking taze you, you got 3 seconds"! then reached towards his right rear of his back motioning like he was going pull out a tazer, causing Witness#1 & #2 sitting at the table to jump up in fear. (David) states that he continued to tell (Dartanyous) to leave or he continued to refuse, and then stated I'mgoing to punch you in the face. (David) further states that he was able to escort (Dartanyous) outside, where he continued to make threats, and try to come back in. (David) states that he placed (Dartanyous) on the ground and held himthere while on the phone with the dispatcher awaiting police to arrive.

Both Witness#1 & #2 (Williams) & (Swenson) both state that they were sitting at their table when this altercation occurred, and that they both were frightened when (Dartanyous) reached towards his back, motioning like he was going to pull out a tazer.

EMS#1 on scene
Confwith 9606 on scene
Misdemeanor Complaint Statement completed
WCS#3900 & 6187 along with video surveillance inside of (Harry Buffalo)

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Redaction Date: Monday, October 15, 2018 10:32:44 AM

Total Number of Redactions: 5

By Exemption:

"Motor vehicle/driver record information (including driver's license numbers, license plate numbers, VIN numbers, and the entirety of a driver's license including photos) pursuant to 18 U.S.C. 7521, et seq. (Driver's Privacy Protection Act).
" (MTR VEH/LICENSE): 5 instances

By Page:

Page 4 - "Motor vehicle/driver record information (including driver's license numbers, license plate numbers, VIN numbers, and the entirety of a driver's license including photos) pursuant to 18 U.S.C. 7521, et seq. (Driver's Privacy Protection Act).
" (MTR VEH/LICENSE): 1 instance
Page 5 - "Motor vehicle/driver record information (including driver's license numbers, license plate numbers, VIN numbers, and the entirety of a driver's license including photos) pursuant to 18 U.S.C. 7521, et seq. (Driver's Privacy Protection Act).
" (MTR VEH/LICENSE): 1 instance
Page 6 - "Motor vehicle/driver record information (including driver's license numbers, license plate numbers, VIN numbers, and the entirety of a driver's license including photos) pursuant to 18 U.S.C. 7521, et seq. (Driver's Privacy Protection Act).
" (MTR VEH/LICENSE): 1 instance
Page 7 - "Motor vehicle/driver record information (including driver's license numbers, license plate numbers, VIN numbers, and the entirety of a driver's license including photos) pursuant to 18 U.S.C. 7521, et seq. (Driver's Privacy Protection Act).
" (MTR VEH/LICENSE): 2 instances